IN THE UNITED STATES NAVY-MARINE CORPS

COURT OF CRIMINAL APPEALS

Before Panel [No.]

UNITED STATES

Appellee

v.

[Appellant Name]
[Rank] ([Pay grade])
U.S. [Service]

Appellant

NMCCA No. [NMCCA No. to be inserted]

ANSWER TO APPELLANT'S BRIEF AND ASSIGNMENTS OF ERROR

TO THE HONORABLE, THE JUDGES OF THE UNITED STATES NAVY-MARINE CORPS COURT OF CRIMINAL APPEALS

Tried at [Installation], [Location], by [general / special] court-martial convened by [convening authority], on [dates].

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ASSIGNMENTS OF ERROR

I. WHETHER THE MILITARY JUDGE ERRED BY DENYING THE DEFENSE MOTION TO DISMISS SPECIFICATION 1 OF CHARGE I AS AN UNREASONABLE MULTIPLICATION OF CHARGES.

II. WHETHER THE EVIDENCE IS LEGALLY AND FACTUALLY SUFFICIENT TO SUPPORT THE FINDING OF GUILTY TO SPECIFICATION 2 OF CHARGE II.

STATEMENT OF STATUTORY JURISDICTION

The United States adopts the statement of statutory jurisdiction in Appellant's brief. This Court has jurisdiction under Article 66(b), Uniform Code of Military Justice (UCMJ), 10 U.S.C. § 866(b), because the approved sentence includes a punitive discharge, and the Court's jurisdiction over the case is not in dispute.

STATEMENT OF THE CASE

The United States adopts the statement of the case in Appellant's brief, with the following addition. Appellant was tried by [forum] on [dates]. The military judge entered findings of guilty to the specifications that are the subject of the assignments of error, and the convening authority approved the sentence as adjudged, subject to the pretrial agreement. [Record citation.]

STATEMENT OF FACTS

The United States adopts the facts in Appellant's brief and states the following additional facts. On [date], the appellant [conduct, stated neutrally and with a record

citation]. Two witnesses testified that [testimony summarized]. [Record citation.] The defense did not contest the authenticity of the exhibit admitted as Prosecution Exhibit [No.]. [Record citation.]

The military judge issued special findings on the motion. The judge found that the two specifications were directed at separate acts occurring on separate days, with separate victims, and that the charging decisions were not unreasonable. [Record citation.]

SUMMARY OF ARGUMENT

The military judge did not abuse his discretion in declining to find an unreasonable multiplication of charges. The two specifications describe separate acts with separate harms, and the defense did not show that the charging scheme was unreasonable in the sense required by the Court's precedent. [Authority.]

The evidence is legally and factually sufficient. A rational factfinder could conclude beyond a reasonable doubt that the appellant committed the offense, and the Court should affirm the finding on Specification 2 after its own independent review. [Authority.]

ARGUMENT

Standard of Review

This Court reviews whether a charge is an unreasonable multiplication of charges for an abuse of discretion, and reviews questions of law de novo. [Authority.] Legal and factual sufficiency are reviewed de novo, and the Court must be convinced of guilt beyond a

reasonable doubt after making its own independent judgment as to factual sufficiency. Article 66(c), UCMJ. [Authority.]

I. *The military judge did not err in declining to dismiss Specification 1 of Charge I.*

Principles of Law

Multiplication of charges is a doctrine of the Fifth Amendment protection against double jeopardy, and an unreasonable multiplication of charges is a separate doctrine that protects against prosecutorial overreach. [Authority.] The Court considers, among other factors, whether each charge is aimed at a distinct harm, whether the charges misrepresent or exaggerate the appellant's criminality, and whether the number of charges unreasonably increases the punitive exposure. [Authority.]

Discussion

The defense argues that the two specifications are a single act charged twice. The record does not support that argument. The first specification alleges conduct on [date] at [location]; the second alleges separate conduct on [date] at [location]. [Record citation.] Each specification has its own element of proof, and each rests on a separate witness. [Record citation.]

The defense also argues that the charges inflate the appellant's punitive exposure. The military judge rejected that argument after considering the sentencing guidelines and the maximum punishment for each offense. [Record citation.] The judge's

conclusion was within the range of reasonable choices and was not an abuse of discretion. [Authority.]

A. The charges describe distinct harms.

The first specification charges the offense against [victim], and the second charges the offense against [victim] on a different date. The harms are separate, and the offenses do not merge under the elements test. [Authority.] The defense does not identify any overlap in proof that would make the two specifications a single offense.

B. The charging scheme was not unreasonable.

The convening authority was entitled to charge each act separately, and doing so did not exaggerate the appellant's criminality. The military judge reviewed the charge sheet, heard argument, and made findings on the record. [Record citation.] Nothing in that record shows that the number of charges was chosen to increase punishment. [Authority.]

II. *The evidence is legally and factually sufficient to support the finding of guilty to Specification 2 of Charge II.*

Standard of Review

The Court reviews legal sufficiency de novo, asking whether any reasonable factfinder could have found the essential elements beyond a reasonable doubt, viewing the evidence in the light most favorable to the prosecution. [Authority.] The Court then independently weighs the evidence for factual sufficiency. Article 66(c), UCMJ.

Discussion

The appellant argues that the only evidence of the element of [element] was the testimony of one witness, whom he says was not credible. Credibility is for the factfinder, and the military judge found the witness credible after observing the testimony. [Record citation.] The testimony was corroborated by [corroborating evidence]. [Record citation.]

Viewed in the light most favorable to the prosecution, the evidence permits a rational finding of guilt on each element. The Court should affirm, and it should be convinced of guilt beyond a reasonable doubt after its own review of the record. [Authority.]

CONCLUSION

The United States respectfully requests that this Honorable Court affirm the findings of guilty to Specification 1 of Charge I and Specification 2 of Charge II, and affirm the sentence as approved by the convening authority.

Respectfully submitted.

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CERTIFICATE OF FILING AND SERVICE

I certify that the foregoing was delivered to the Navy-Marine Corps Court of Criminal Appeals, and that a copy was served on Appellate Defense Division, Navy-Marine Corps Appellate Review Activity on [date of filing].

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